

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1618

By: Gollihare of the Senate

and

Harris of the House

COMMITTEE SUBSTITUTE

An Act relating to the Pretrial Release Act; amending 22 O.S. 2021, Section 1105.2, which relates to conditions of release; defining term; requiring court to conduct certain risk assessments; requiring assessment to be provided to defense counsel upon request; updating statutory language; updating statutory references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 1105.2, is amended to read as follows:

Section 1105.2. A. For the purposes of this section, "pretrial risk assessment" means a validated actuarial assessment that predicts the likelihood of the risk of failure of a defendant to appear or risk of being arrested for a new crime during the pretrial period. The pretrial risk assessment may include:

1 1. Information related to the criminal and substance abuse
2 history of the defendant, and ties to the community; and

3 2. Consideration of the nature, circumstances, and seriousness
4 of the offense.

5 B. Following an arrest for a misdemeanor or felony offense and
6 before formal charges have been filed or an indictment made, the
7 arrested person may have bail set by the court as provided in ~~this~~
8 ~~act~~ the Pretrial Release Act; provided there are no provisions of
9 law to the contrary.

10 ~~B.~~ C. When formal charges or an indictment has been filed, bail
11 shall be set according to law and the pretrial bond, if any, may be
12 reaffirmed unless additional security is required. Every judicial
13 district may, upon the order of the presiding judge for the
14 district, establish a pretrial bail schedule for felony or
15 misdemeanor offenses, except for traffic, wildlife, or water safety
16 offenses included in subsections B, C and D of Section 1115.3 of
17 ~~Title 22 of the Oklahoma Statutes~~ this title and those offenses
18 specifically excluded herein. The bail schedule ~~established~~
19 ~~pursuant to the authority of this act~~ shall exclude any offense for
20 which bail is not allowed by law. The bail schedule ~~authorized by~~
21 ~~this act~~ shall be set in accordance with guidelines relating to bail
22 and shall be published and reviewed by March 1 of each year by the
23 courts and district attorney of the judicial district.

1 ~~C.~~ D. The court shall conduct a pretrial risk assessment to
2 assist in determining release conditions for a defendant. The
3 results of the assessment shall not be used as the sole basis to
4 grant or deny pretrial release. Upon request, results of the
5 assessment shall be provided to defense counsel.

6 E. The pretrial bail shall be set in a numerical dollar amount.
7 If the person fails to appear in court as required the judge shall:

8 1. Rescind the bond and proceed to enter a judgment against the
9 defendant for the dollar amount of the pretrial bail if no private
10 bail was given at the time of release; provided, however, the court
11 clerk shall follow the procedures as set forth in Section 1301 et
12 seq. of Title 59 of the Oklahoma Statutes in collecting the
13 forfeiture amount against the person who fails to appear in court;
14 or

15 2. Rescind and forfeit the private bail if cash, property or
16 surety bail was furnished at the time of release as set forth in
17 Section 1301 et seq. of Title 59 of the Oklahoma Statutes.

18 ~~D.~~ F. When a pretrial program exists in the judicial district
19 where the person is being held, the ~~judge~~ court may utilize the
20 services of the pretrial release program when ordering pretrial
21 release, except when private bail has been furnished.

22 ~~E.~~ G. Upon an order for pretrial release or release on bond,
23 the person shall be released from custody without undue delay.

1 ~~F.~~ H. The court may require the person to be placed on an
2 electronic monitoring device as a condition of pretrial release.

3 ~~G.~~ I. In instances where an electronic monitoring device has
4 been ordered, the court may impose payment of a supervision fee.
5 Payment of the fee, in whole or according to a court-ordered
6 installment schedule, shall be a condition of pretrial release. The
7 court clerk shall collect the supervision fees.

8 SECTION 2. This act shall become effective January 1, 2027.

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